

July 08, 2021



U.S. Department
of Transportation

East Building, PHH-13
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 21154

EXPIRATION DATE: 2023-06-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Erickson Incorporated
Medford, OR
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain hazardous materials by 14 CFR Part 133 cargo-only aircraft (rotorcraft external load operations) transporting hazardous materials attached to or suspended from the aircraft, and Part 135, as applicable, in remote areas of the US only, without being subject to certain hazard communication requirements, quantity limitations and certain loading and stowage requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. This Special Permit does not grant the authority to use foreign controlled airspace or airports outside the United States.
 - d. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B), § 173.27(b) (2) and

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§ 175.30(a)(1) in that the materials exceed the specified quantity limitations; § 172.200 in that shipping papers are waived; § 172.302(c) in that marking the special permit number on each package is waived; 173.315(j) in that storage containers must be charged to five percent of their capacity or less and intended for the permanent installation on consumer premises and shipped by private motor carrier, except as specified herein; and § 175.75 in that alternative stowage is authorized.

5. BASIS: This special permit is based on the application of Erickson Incorporated dated December 04, 2020 submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Petroleum gases, liquefied or Liquefied petroleum gas	2.1	UN1075	N/A
Propane	2.1	UN1978	N/A

7. SAFETY CONTROL MEASURES:

- a. PACKAGING:

For propane and petroleum gases, liquefied, prescribed packagings must comply with Subpart B of Part 173 and § 173.315(j)(1)(i) and (ii). Valves or other fittings must be adequately protected against damage during transportation. The requirements in § 173.315(j)(1) that storage containers must be charged to five percent of their capacity or less and must be intended for permanent installation on consumer premises and shipped by private motor carrier are waived.

- b. OPERATIONAL CONTROLS:

(1) Prior to attaching or suspending (from an aircraft) any storage containers of propane and petroleum gases, liquefied, packaged in accordance with

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paragraph 7.a. of this special permit, each storage container must be inspected by a trained and qualified person for leaks, corroded or abraded areas, dents, distortions, weld defects, or other conditions that may render the container or package unsafe for transportation.

(2) For propane and petroleum gases, liquefied, packaged in accordance with paragraph 7.a. of this special permit, a maximum of two full containers or four empty containers may be attached to or suspended from an aircraft at one time under the terms of this special permit. For containers with a capacity exceeding 1,000 gallons, no more than a single container may be attached to or suspended from an aircraft at one time.

(3) Crew notification must be conducted prior to each operation conducted under the terms of this special permit. The crew must be notified of the type and quantities of hazardous materials to be transported under the Terms of this special permit.

(4) The public must be excluded by local authorities and emergency responders must be notified in advance of each operation conducted under the terms of this special permit.

(5) Each operation conducted under the terms of this special permit is only authorized in the U.S. and only: in support of construction operations when the use of cranes or other lifting devices is impracticable or unavailable; or when aircraft is the only means of transportation.

(6) Hazardous materials transported must comply with the safety controls specified in this special permit.

(7) The safe operational weight limit of the aircraft may not be exceeded.

(8) Alternative pilot-in-command notification procedures for 49 CFR Part 175.33, may be established subject to the written approval of the FAA Office of Hazardous Materials Safety.

(9) Hazardous material that might react dangerously with one another may not be placed next to each other

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or in a position that would allow a dangerous interaction in the event of leakage. Segregation Table in § 175.78 shall be used.

8. SPECIAL PROVISIONS:

- a. All packages must be blocked and braced to prevent movement.
- b. Materials transported by external load must comply with the safety controls specified in this special permit.
- c. This special permit does not grant the authority to use foreign controlled airspace or airports outside the United States.
- d. Operations under the terms of this special permit are only authorized to be conducted in remote areas of the U.S.
- e. The marking requirements of 49 CFR 172.302(c) are waived.
- f. The requirements for shipping papers are waived.
- g. Each packaging must be properly marked and labeled for the hazardous materials contained within.
- h. This special permit does not waive any FAA airworthiness requirements or the need to obtain other required FAA authorizations.

9. MODES OF TRANSPORTATION AUTHORIZED: Rotorcraft external load operations.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

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- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Andrew Eckenrode